

CHAPTER 13.

An Act to amend section seven of the Criminal
Justice Act, 1925. [30th June 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment
of s. 7 of
Criminal
Justice Act,
1925.
15 & 16 Geo.
5. c. 86.
7 Edw. 7.
c. 17.

1.—(1) There shall be substituted for the subsection directed by subsection (2) of section seven of the Criminal Justice Act, 1925 (in this Act referred to as “the principal Act”), to be substituted for subsection (3) of section one of the Probation of Offenders Act, 1907, the following subsection:—

“(3) The court may, where it makes an order under this section, further order that the offender shall pay such costs of the proceedings, or such damages for injury or compensation for loss (not exceeding in the case of a court of summary jurisdiction twenty-five pounds, or, if a higher limit is fixed by any enactment relating to the offence, that higher limit), as the court thinks reasonable, or both such costs and damages or compensation.”

(2) The following further amendments shall be made in section seven of the principal Act:—

- (a) In subsection (1) for the words “in every case where a person as respects whom a probation order has been made by a court of summary jurisdiction” there shall be substituted the words “in every case where a person in respect of whom an order has been made by a court of summary jurisdiction under section one of the principal Act”:
- (b) In subsection (4) for the words “probation order” there shall be substituted the word “recognizance”:
- (c) In subsection (5) for the words “the certificate” there shall be substituted the words “any such certificate, if purporting to be signed by a justice”:

- (d) In subsection (6) for the words “ where a person
“ as respects whom a probation order has been
“ made” there shall be substituted the words
“ where a person bound by his recognizance to
“ appear for conviction and sentence.”

2.—(1) This Act may be cited as the Criminal Justice (Amendment) Act, 1926, and the principal Act and this Act may be cited together as the Criminal Justice Acts, 1925 and 1926. Short title
and
printing.

(2) Every enactment and word which is directed by this Act to be substituted for any portion of the principal Act shall form part of that Act in the place assigned to it by this Act, and the principal Act shall be construed as if the said enactment or word had been enacted in the principal Act in the place so assigned and had been enacted in lieu of the enactment or word for which it is substituted.

A copy of the principal Act with the amendments required by this Act shall be prepared and certified by the Clerk of the Parliaments and deposited with the Rolls of Parliament, and His Majesty's printer shall print in accordance with the copy so certified all copies of the principal Act which are printed after the commencement of this Act.

CHAPTER 14.

An Act to provide for the incorporation of the Trustees of the Imperial War Graves Endowment Fund and for other matters connected with the said Fund. [30th June 1926.]

WHEREAS by Royal Charter dated the twenty-first day of May, nineteen hundred and seventeen, a body was incorporated by the name of the Imperial War Graves Commission for the purpose of caring for the graves of officers and men of the military and naval forces of His Majesty who fell in the late war and for other purposes mentioned in the Charter :

And whereas under Part VI. of the said Charter the Commission were empowered to establish an Endowment Fund (in this Act referred to as “ the Endowment